

24CMCV00614 24CMCV00614

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-25

Motion: DEFENDANT'S MOTIONS TO COMPEL FURTHER RESPONSES TO: (1) SPECIAL INTERROGATORIES, SET ONE; AND (2) REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE DATE: August 25, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV00614 Hearing Date: August 25, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES –
SOUTH CENTRAL DISTRICT

JAILYN ROBATEAU; and JUSTUS HARRIS, a minor, by and through Guardian
ad Litem Jailyn Robateau,

Plaintiffs,

vs.

FOOD 4 LESS
HOLDINGS, INC.; and DOES 1 to 50, inclusive,

Defendant(s).

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CASE NO: 24CMCV00614

ORDER RE: DEFENDANT'S MOTIONS TO
COMPEL FURTHER RESPONSES TO: (1) SPECIAL INTERROGATORIES, SET ONE; AND (2) REQUEST
FOR PRODUCTION OF DOCUMENTS, SET ONE

DATE: August 25, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant Alpha Beta
Company, dba Food 4 Less (erroneously sued as “Food 4 Less Holdings, Inc.”)

Responding Party: Plaintiff Jailyn Robateau

Notice: Ok

Tentative

Ruling: (1) Defendant's

Motion to Compel Further Responses to Special Interrogatories, Set One is GRANTED IN PART.

(2)

Defendant's Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED IN PART.

I.

BACKGROUND

This action arises out of molded bread allegedly purchased and consumed by Plaintiffs Jailyn Robateau ("Plaintiff") and Justus Harris, a minor, by and through Guardian ad Litem Jailyn Robateau (collectively, "Plaintiffs") from Defendant Alpha Beta Company dba Food 4 Less (erroneously sued as "Food 4 Less Holdings, Inc.") ("Defendant"), at Defendants store located at 11245 Logn Beach Blvd., Lynwood, CA 90262 (the "Store"). Plaintiffs alleged they purchased and consumed molded bread from the Store and suffered adverse health consequences as a result thereof.

On April 26, 2024, Plaintiffs filed their original Complaint.

On August 1, 2024, Plaintiffs filed their First Amended Complaint ("FAC") against Defendant and Does 1 to 50, inclusive, alleging three causes of action for (1) General Negligence; (2) Premises Liability; and (3) Products Liability.

On July 17, 2026, Defendant filed the instant Motions to Compel Further Responses to: (1) Special Interrogatories, Set One, and (2) Request for Production of Documents, Set One (collectively, the "Discovery Motions").

On August 10, 2026, Plaintiff filed her Responses.^[1]

As

of August 22, 2026, no oppositions or replies have been filed. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties "at least nine court days ... before the hearing" and all reply

papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal

Standards

1.

Special Interrogatories (“SROGs”)

A

party must respond to interrogatories within 30 days after service. (Code Civ. Proc. § 2030.260(a).) The propounding party may bring motions to compel further responses to interrogatories if it believes (1) the responses received are evasive, or (2) incomplete, or (3) if the objections raised are meritless or too general. (Code Civ. Proc. §§ 2030.300(a).) The propounding party must serve notice of a motion to compel further responses to interrogatories within 45 days of the service of the verified responses, unless the parties agree in writing to extend the deadline to a specific later date. (Id. at § 2030.300(c).)

A

motion to compel further responses to SROGs shall be accompanied by a meet and confer declaration and a separate statement, or concise outline of the discovery request and each response in dispute. (Code Civ. Proc. § 2030.300(b).) A respondent has the burden to justify objections in response to a motion filed to compel further responses. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

2.

Requests for Production of Documents (“RPDs”)

“A

party may demand that any other party produce ... a document that is in the possession, custody, or control of the party on whom the demand is made.” (Code

Civ. Proc. § 2031.010(b).) The demanding party may move for an order compelling further response to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc. § 2031.310(a).)

“The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand,” and “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2031.310(b).) On the other hand, the respondent has the burden to justify objections in response to a motion filed to compel further responses. (Fairmont Ins. Co. v. Superior Court, *supra*, 22 Cal.4th at p. 255.)

B.

Meet and Confer

Prior

to bringing a motion to compel further responses, the moving party must meet and confer in good faith and must attach a declaration pursuant to Code of Civil Procedure § 2016.040. “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc. § 2016.040.)

Counsel

for Defendants, Jennifer W. Naples (“Naples”), attests that Defendant served its discovery on Plaintiff on March 11, 2026. (Naples Decl. ISO RPDs Mot., ¶ 4, Exh. A; Naples Decl. ISO SROGs Mot., ¶ 4, Exh. A.)[2]

Naples attests that Plaintiff’s

responses were unverified, contained baseless objections, and lacked information. (Id., ¶ 5, Exh. B.)

On May 1, 2026, Defendant served a meet and confer letter on Plaintiff.

(Id., ¶ 6, Exh. C.) Naples

attests that Plaintiff failed to respond to her meet and confer effort. (Id., § 7.)

The

Court does not find that Defendant has met and conferred as required by the

Code of Civil Procedure. The Code of Civil Procedure requires a party to meet and confer "either in person, by telephone, or by videoconference;" a letter is insufficient. (See Code Civ. Proc. § 2016.040.) Although the Court has determined that Defendant's meet and confer efforts were insufficient, the Court continues with its analysis of Defendant's motion. The parties are cautioned, however, to ensure compliance with the requirements of the Code of Civil Procedure moving forward.

C.

Discussion

1.

Verifications

A

party responding to Requests for Production must sign the response under oath. (Code Civ. Proc. § 2031.250(a).) Similarly, a party responding to Special Interrogatories must sign the response under oath. (Id. §§ 2030.210(a), 2030.250(a).)

Upon

review of Plaintiff's responses to the RPDs and SROGs, the Court finds that Plaintiff has not verified her responses to either set of discovery. For that reason alone, further responses is required.

2.

RPDs

Defendant

moves to compel Plaintiff's further responses to its Requests for Production numbered 1-62. As to each, Defendant argues that the responses provided are unverified and contain baseless objections. As noted previously, Plaintiff does not respond but rather filed copy of her response to Defendant's Requests for Production. As the substance of Plaintiff's responses, the Court finds as follows:

REQUESTS

FOR PRODUCTION NOS. 1-54. Each of

Plaintiff's requests for production numbered 1 through 54 seeks information regarding nine (9) rather recently filed cases in which Plaintiff was party,

including the complaint for each case and documents evidencing the parties to the case, pleadings, discovery and deposition transcripts. The cases for which Defendant seeks documents are identified as follows:

1)

Case

No.: 23CMCV01574, filed October 2, 2023;

2)

Case

No.: 23CMCV01821, filed November 13, 2023;

3)

Case

No.: 24CMCV00153, filed February 5, 2024;

4)

Case

No.: 24CMCV01214, filed August 12, 2024;

5)

Case

No.: 24CMCV01302, filed August 27, 2024;

6)

Case

No.: 24CMCV01978, filed December 13, 2024;

7)

Case

No.: 25CMCV01847, filed October 31, 2025;

8)

Case

No.: 25STCV13298, filed May 7, 2025; and

9)

Case

No.: 26CMCV00194, filed January 29, 2026.

In

response to each request, Plaintiff responds "OBJECTION. This demand is irrelevant to the current case matter in litigation." (See Defendant's Separate Statement ("DSS"), pp. 1-22; see also Plaintiff's August 10, 2026 Response.)

Defendant argues that the information sought may allow it to discover other possible injuries Plaintiff may suffer from and that the relevant inquiry is not whether the information sought is admissible but rather whether the information sought will allow Defendant to evaluate the instant case, prepare for trial or facilitate settlement.

Defendant further argues that the discovery sought is within the realm of discoverable information and Plaintiff's refusal to respond is contrary to the spirit of discovery, which "demands the free exchange of information, whether it be legal or factual." (See DSS, p. 11:7-18.)

The

Court finds Defendant's arguments persuasive.

The scope of discovery is broad and, whether admissible or not, none of the documents sought appear to be of the type that fall outside that broad scope. The Court further finds that the information sought may indeed allow Defendant to evaluate this case and assist in settlement, especially given the time frame the cases were filed. The injuries alleged in any of the nine other matters might provide relevant information as to the injuries alleged in the instant matter.

Plaintiff's

objection to Request for Production numbers 1 through 54 are OVERRULED and Plaintiff will be ordered to serve further responses to each, without further objection.

REQUEST

FOR PRODUCTION NOS. 55-57, 59-62. Defendant's Requests numbered 55-57 ask Plaintiff to produce photos of: (1) the brand of bread at issue in this matter (RPD No. 55); (2) the mold on the bread (RPD No. 56); and (3) her receipt evidencing the purchase of the bread (RPD No. 57). Request No. 59 seeks all documents which Plaintiff contends evidence Defendant's liability. Request Nos. 60 and 61 seek all documents evidencing Plaintiff's contention both Plaintiffs' illness resulted from ingestion of moldy bread. And Request No. 62 seeks all documents evidencing testing done on the bread Plaintiff alleges she purchased from Defendants. To each, Plaintiff responds that she has already served defendant with all the evidence via her original complaint but agrees to "resend" the documents.[3]

Defendant

argues that each response is “completely unresponsive” and “not code compliant.” The Court finds Defendant's arguments persuasive. Although Plaintiff has agreed to produce the responsive documents, her response does not comport with Code of Civil Procedure. A statement of compliance must state that the production, inspection, copying, testing or sampling will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the responding party's possession, custody or control, and to which no objection is made, will be included in the production. (Code Civ. Proc. § 2031.220.)

Further

responses are required.

REQUEST

FOR PRODUCTION NO. 58 asks Plaintiff to produce “[a]ny and all photographs of YOUR receipts depicting the date and time YOU had purchased the same bread that allegedly caused the SUBJECT INCIDENT in the six (6) months prior to 2/7/24.” (DSS, p. 25:6-8 (emphasis in original).) Plaintiff's response objects to the relevance of the request along with noting the impossibility to provide receipts from that long ago. (Id., p. 25:10-14.)

Defendant

seeks a further response, arguing that “information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.” While Defendant's argument is a correct statement as to how the Court's determines relevance, outside of the general definition of relevance Defendant has not set forth any factual or legal argument as to why this information is relevant. (See Code Civ. Proc. § 2031.310(b)(A motion to compel further responses to an inspection demand must state specific facts showing good cause justifying the discovery that is sought).) Defendant has not stated any facts showing good cause for seeking Plaintiff's receipts for purchase of the same type of bread in the six months prior to the incident.

No

further response is required.

3.

SROGs

Defendant

seeks further responses to its Special Interrogatories numbered 1 through 53. As to each, the Court rules as follows:

SPECIAL

INTERROGATORIES NOS. 1- 45 each seek information as to the nine previously filed cases identified in the Court's analysis of Defendant's RPDs Motion, including information as to: (1) the nature of the claims asserted; (2) the current status of each case; (3) names of the parties to each case; and (4) identification of attorneys representing the parties in each case. To each, Plaintiff responds with an objection that the information is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. (See, e.g., Defendant's Separate Statement filed in support of SROGs Mot. ("DSSSROGs"), p. 33:5-7; see also Plaintiff's Response, filed 8/10/26.)

For

the same reasons set forth in the Court's analysis of Defendant's RPDs Motion, the Court does not find merit in Plaintiff's objections. Again, the Court notes that the scope of discovery is broad and, whether admissible or not, none of the information sought appears to be of the type that fall outside that broad scope. And the Court again further finds that the information sought may indeed allow Defendant to evaluate this case and assist in settlement, especially given the time frame the cases were filed; the injuries alleged in any of the nine other matters might provide relevant information or insight as to the injuries alleged in the instant matter.

Further

responses are required.

SPECIAL

INTERROGATORIES NO. 46 – 48. Special Interrogatories Nos. 46-48 ask Plaintiff to: (1) identify the brand of bread at issue in this matter (SROG No. 46); and (2) identify any blood, stool or vomitus samples or cultures taken or developed from Plaintiff and/or Plaintiff Harris, the doctor who ordered any such samples or cultures and the lab processing any such samples or cultures (SROGs 47-48). To each, Plaintiff responds "[s]ee complaint

and evidence attached.” (See, e.g., DSSSRogs, p. 35:2.)

Defendant

argues that Plaintiff’s responses are not code-compliant. Defendant is correct. A response to an interrogatory must be “as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220(a); Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 590.) An answer is incomplete if it merely refers to other documents without summarizing them, such as “see my deposition,” “see my pleading,” or “see the financial statement.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783-784 (“Deyo”).)

Further

responses are required.

SPECIAL

INTERROGATORY NOS. 49-53. Defendant’s

Separate Statement identifies and requests further responses to Special

Interrogatories numbers 49-53. Upon

comparison to the propounded discovery to Defendant’s Separate statement, however, the interrogatories as set forth in Defendant’s Separate Statement do not match up to the propounded interrogatories.

By

way of example, Defendant’s Separate Statement identifies Special Interrogatory No. 49 as: “If on 2/7/24 YOU did not check the use-by date on the bread before purchase, why didn’t YOU check it?” (DSSSRogs, p. 35:14-15) and seeks a further response. However, Special Interrogatory No. 49 in the interrogatories propounded to Plaintiff, as attached to the Naples Declaration, asks “Please IDENTIFY any blood, stool, or vomitus samples or cultures taken or developed from YOU concerning the illness described in your complaint by type of culture or testing, result, doctor who ordered it (name, address and telephone number) and lab that analyzed it (named, address and telephone number).” (Naples Decl., Exh. A, p. 7:26-8:2.) The same discrepancy occurs throughout Special Interrogatories Nos. 49-53.

The

Court declines to search through Defendant’s propounded interrogatories and Plaintiffs’ responses and compare both to Plaintiff’s Separate Statement to match up the interrogatories for which a response is requested with their correct numbering and with the correct response.

Defendant's

Motion to Compel Further Responses as to Special Interrogatories numbered 49-53
is DENIED.

4.

Sanctions

As to

each Discovery Motion, Defendant requests the Court impose monetary sanctions in the amount of \$1,530.00 against Plaintiff, consisting of: 3 hours preparing each motion and separate statement, an anticipated 2 hours to prepare a reply, 1 hour to prepare for the hearings, and 1 hour to attend the hearing on these motions, all at a rate of \$245 per hour. (See Naples Decl. ISO RPDs Mot., ¶ 8.) Defendant further requests a \$60 filing fee for each motion. (Id.)

When

a party successfully makes or opposes a motion to compel further response to special interrogatories, "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against" the unsuccessful party "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. §§ 2030.300(d).) And pursuant to the Rule of Court 3.1348, the Court has discretion to award sanctions under the Discovery Act in favor of a successful moving party, even if no opposition to the motion was filed. (See Cal. R. Ct., Rule 3.1348(a).)

While

the Court finds that sanctions are warranted, the Court also finds that Defendant's requested sanctions are excessive given: (1) the duplicative and relatively simple nature of these two Discovery Motions; (2) the fact that Defendant has not filed a reply to either motion; and (3) the fact that both motions will be heard in conjunction with the other (making a total of 4 hours of time preparing for and attending the hearings excessive). The Court finds counsel's hourly rate to be reasonable for an attorney in the Greater Los Angeles Area and further finds sanctions are warranted in the total reduced amount of \$ 855.00, representing 1.5 hours at \$245/hr per motion with an additional \$60 per motion for filing fees.

III.

CONCLUSION

Defendant's

Motion to Compel Further Responses to Requests for Production, Set One is GRANTED IN PART. Plaintiff is ordered to serve further responses, code-compliant and without further objection, to RPDs number 1-57 and 59-62.

Defendant's

Motion to Compel Further Responses to Special Interrogatories, Set One is GRANTED IN PART. Plaintiff is ordered to serve further responses, code-compliant and without further objection, to Special Interrogatories numbers 1-48.

Plaintiff's

further responses are ordered to be served on Defendant no later than September 25, 2026. And the awarded sanctions are ordered to be paid to Defense counsel no later than September 25, 2026.

[1] Plaintiff did not file oppositions to Defendant's discovery motions.

Instead, Plaintiff filed her: (1) Response to Defendant's Request for Production, Set One; and (2) Response to Defendant's Special Interrogatories, Set One.

[2] Defense counsel's declarations in support of the RPDs Motion and the SROGs motion are nearly identical, save for the identification of the discovery at issue. Accordingly, the Court's further citations in Section II.B and later in Section II.C.4 are made to counsel's declarations filed in support of the RPDs Motion with the understanding that the same information is within the declaration filed in support of the SROGs Motion.

[3] See DSS, p. 22:26-28, p. 23: 22-23, p. 24:15-17, p. 26:11-14, p. 27:7-10, p. 28:3-6, p. 28:26-29:1.

Case Number: 24CMCV01228-1 Hearing Date: August 25, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

FARID

S. URQUIZU FLORES, an individual,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO.,

INC. a California Corporation, and SONIC-HARBOR CITY H, INC., a California Corporation d/b/a CARSON HONDA, and DOES 1 through 10, inclusive,

Defendants.

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CASE

NO: 24CMCV01228

ORDER RE: DEFENDANT CARSON HONDA'S MOTION

FOR SUMMARY JUDGMENT

DATE:

August 25, 2026

TIME:

8:30 A.M.

DEPT.:

E

Moving Party: Defendant

Carson Honda

Responding Party: Plaintiff

Farid S. Urquizu Flores

Notice: Ok

Tentative Ruling: Defendant

Carson Honda's Motion for Summary Judgment is DENIED.

I.

BACKGROUND

This is a Song-Beverly action filed on August 13, 2024. Plaintiff Farid S. Urquizu Flores ("Plaintiff") alleges that on October 28, 2023, he purchased a 2024 Honda CR-V, vehicle identification number 2HKRS3H45RH304709, (the "Subject Vehicle"). Through such purchase, Plaintiff entered a warranty contract with Defendant American Honda Motor Co. ("American Honda"), including various warranties including, inter alia, a 3-year/36,000-mile express bumper-to-bumper warranty, a 5-year/60,000-mile powertrain warranty, and various emissions warranties with greater time and mileage limitations than the bumper-to-bumper and powertrain warranties. Plaintiff further alleges that subsequent to the purchase and during the express warranty period, the Subject Vehicle exhibited serious defects and nonconformities to warranty including, inter alia, electrical, steering, and suspension system defects. Although Plaintiff presented the Subject Vehicle to Defendant Sonic-Harbor City H, Inc., d/b/a Carson Honda ("Carson Honda"), one of American Honda's authorized repair facilities, for

warranty repairs on multiple occasions, none of the repairs brought the Subject Vehicle in conformity with the express warranty. Plaintiff further alleges that American Honda failed to promptly offer to repurchase or refund the Subject Vehicle.

On

August 13, 2024, Plaintiff filed the operative Complaint asserting cause of action for: (1) Violation of the Song-Beverly Act – Breach of Express Warranty; (2) Violation of the Song-Beverly Act – Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2; and (4) Negligent Repair.

On

April 23, 2026, Carson Honda filed the instant Motion for Summary Judgment (the “MSJ”)

On July

30, 2026, Plaintiff filed an Opposition.

As of August 23, 2026, Carson Honda

has not filed a Reply. Pursuant to Code of Civil Procedure § 437c(b)(4),

“[a] reply to the opposition shall be served and filed by the moving party not

less than 11 days preceding the noticed or continued date of hearing, unless

the court for good cause orders otherwise. (Code Civ. Proc. § 437c(b)(4).) Accordingly, any reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely

filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of

California State Univ. (2019) 31 Cal.App.5th 640, 657.)

I.

ANALYSIS

A.

Legal

Standard

The purpose of a motion for summary

judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their

allegations, trial is in fact necessary to resolve their dispute.” (Aguilar

v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil

Procedure section 437c(c), requires the trial judge to grant summary judgment

if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c(p)(2).) "Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

A motion for summary judgment must be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c(c).) On the other hand, a motion for summary adjudication must be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Id., § 437(f)(1).)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c(c).)

B.

The Undisputed
Material Facts

1.

Carson's

Undisputed Material Facts ("CUMF")

Plaintiff

purchased the Subject Vehicle from Riverside Honda. (CUMF # 1.) Plaintiff alleges that Carson Honda negligently repaired Plaintiff's Vehicle under warranty. (Id., # 2.) Plaintiff makes no claim for personal injury damages and does not allege any intentional damage to the Subject Vehicle. (Id., # 3.)

2.

Plaintiff's

Additional Undisputed Material Facts ("PUMF")

This Subject Vehicle is a 2024 Honda CR-V purchased by Plaintiff (PUMF # 1.)

Despite bringing the Subject Vehicle multiple times to multiple Honda authorized dealerships, including multiple times to Carson Honda, the Subject Vehicle has never been fully conformed to warranty. (Id., # 2.)

Plaintiff trusted Carson Honda to repair the Subject Vehicle, and to use all available resources in doing so. (Id., # 3.) Carson Honda has never been able to fully conform the Subject Vehicle to warranty and it has not used all available resources in attempting to conform the Subject Vehicle to warranty. (Id., # 4.) At every visit, Techline/FTS/DPSM were all available and yet a review of the records does not show those being utilized at each repair opportunity despite them being accessible by Carson Honda. (Id., # 5.)

C.

Discussion

Carson

Honda moves for summary judgment as to Plaintiff's Fourth Cause of Action for Negligent Repair on the ground that Plaintiff's claim is barred by the Economic Loss Rule because Plaintiff's only damages, if any, are economic losses. Plaintiff opposes, arguing that the Economic

Loss Rule does not bar the Fourth Cause of Action because Honda's argument oversimplifies California law, ignores well-recognized exceptions, and relied upon distinguishable decisions that are not binding on this Court and do not address the circumstances presented in this matter.

The

Economic Loss Rule generally bars recovery in tort for negligently inflicted purely economic losses and requires a contractual party to recover in contract for purely economic loss due to disappointed expectations unless the party can demonstrate harm above and beyond a broken contractual promise. (Rattagan, *supra*, 17 Cal.5th 1 at p. 20, citing *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 ("Robinson Helicopter") and *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922 ("Sheen").) The distinction in a plaintiff's recovery "rests ... on an understanding of the nature of the responsibility a manufacturer must undertake in distributing his products. He can appropriately be held liable in tort for physical injuries caused by defects by requiring his good to match a standard of safety defined in terms of conditions that create unreasonable risks of harm. He cannot be held liable in contract for the level of performance of his products in the consumer's business unless he agrees that the product was designed to meet the consumer's demands." (Rattagan, *supra*, 17 Cal.5th at p. 22, citing *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 18 (emphasis in original).)

The restrictions on contract

remedies serve purposes not found in tort law—they protect the parties' freedom to bargain over special risks, and they promote contract formation by limiting liability to the value of the promise. (*Harris v. Atlantic Richfield* (1993) 14 Cal.App.4th 70, 77.) This encourages efficient breaches, resulting in increased production of goods and services at a lower cost to society. (*Ibid.*) Because of these overriding policy considerations, the California Supreme Court has proceeded with caution in carving out exceptions to the traditional contract remedy restrictions. (*Ibid.*)

Nevertheless, the most widely

recognized exception to the Economic Loss Rule is when a defendant's conduct constitutes a tort as well as a breach of contract. (*Id.* at p. at 78.)

When one party commits fraud during the contract formation or performance, the injured party may recover in both contract and tort. (*Ibid.*)

Carson

Honda argues the Economic Loss Rule bars Plaintiff's claim because Plaintiff only alleges that it negligently repaired Plaintiff's Vehicle, failed to plead property or physical damage due to the allegedly negligent repairs, and does not claim personal injury or have evidence of any intentional property damage to the Subject Vehicle.

Plaintiff

argues in opposition that the harm to Plaintiff was foreseeable because in the event that Defendants negligently performed repairs on Plaintiff's Vehicle, it is foreseeable that Plaintiff would suffer harm. Plaintiff further argues that the Complaint alleges that he suffered injury due to negligent repair and the Court in *North American Chemical Company v. Superior Court* (1997) 59 Cal. App. 4th 764 ("North American") held that the Economic Loss Rule does not apply to contracts for services, which holding was affirmed in *Sheen v. Wells Fargo Bank, N.A.* 12 Cal.5th 905 ("Sheen"). Plaintiff further contends that his negligent repair cause of action is rooted in tort and is independent of his first three causes of action alleged against the manufacturer for violation of the Song-Beverly Act.

In

North American, the Court discussed that, in negligent performance cases, a Plaintiff will be entitled to recover economic loss damages without the need to allege or prove personal injury or property damage when Plaintiff is able to satisfy the following criteria for showing a special relationship between the parties: "(1) the extent to which the transaction was intended to affect the plaintiff, (2) the foreseeability of harm to the plaintiff, (3) the degree of certainty that the plaintiff suffered injury, (4) the closeness of the connection between the defendant's conduct and the injury suffered, (5) the moral blame attached to the defendant's conduct, and (6) the policy of preventing future harm." (*North American*, supra, 59 Cal.App.4th at pp. 782, 785 ("[I]n negligent performance cases . . . if those six criteria are satisfied the plaintiff will be entitled to recover economic loss damages without the need to allege and prove personal injury or property damage"))(discussing and citing *J'Aire Corp v. Gregory* (1979) 24 Cal.3d 799.)

Viewed

in the context of the Second District Court of Appeal's holding in *North American*, the Court determines that Carson Honda has not met its burden and the burden does not shift to Plaintiff.

First,

Carson argues that “the repair services performed by Carson Honda were performed pursuant to contract . . . Therefore, Plaintiff’s negligence claim is limited to contract and warranty remedies for the alleged defective vehicle.” (See Mot., p. 5:9-12 (citing “UMF No. 4” and referencing various cases setting forth the general Economic Loss Rule that economic loss alone, without physical injury, cannot be recovered in a matter premised in contract).) However, there is no “UMF No. 4;” Carson Honda presents only undisputed material facts numbered 1 through 3. (See, generally, Carson Honda’s Separate Statement, filed 4/23/26.) Thus, whatever the argument, Carson Honda has not presented evidence in support of its argument.

Next,

Carson Honda does not address the applicability of the North American Court’s decision to the facts at issue here nor does it address whether a triable issue of material fact exists as to any of the six criteria set forth in North American. Upon review of the North American decision, the North American Court determines that the criteria set forth there are indeed applicable in the instant matter because, as is stated in the decision “in negligent performance cases, the reasoning of J’Aire and the six criteria on which it relies will determine the existence of the necessary special relationship and it does not matter whether the plaintiff and defendant are in privity or not. In addition, if those six criteria are satisfied the plaintiff will be entitled to recover economic loss damages without the need to allege and prove personal injury or property damage.” (North American, supra, 59 Cal.App.4th at p. 785 (emphasis added).) Thus, in failing to address whether a triable issue of material fact exists as to any of the six criteria set forth in North American, Carson Honda fails to meet its burden and the burden does not shift to Plaintiff.

III. CONCLUSION

Carson Honda’s Motion for Summary Judgment is DENIED.

Case Number: 24CMCV01228-2 Hearing Date: August 25, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

FARID

S. URQUIZU FLORES, an individual,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO.,

INC. a California Corporation, and SONIC-HARBOR CITY H, INC., a California

Corporation d/b/a CARSON HONDA, and DOES 1 through 10, inclusive,

Defendants.

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CASE NO: 24CMCV01228

[TENTATIVE] ORDER RE: DEFENDANT AMERICAN
HONDA MOTOR CO., INC.'S MOTION FOR
SUMMARY ADJUDICATION

DATE: August 25, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant
American Honda Motor Co., Inc.

Responding Party: Plaintiff
Farid S. Urquizu Flores

Notice: Ok

Tentative Ruling: Defendant
American Honda Motor Co., Inc.'s Motion for Summary Adjudication is GRANTED.

I.

BACKGROUND

This is a Song-Beverly
action filed on August 13, 2024. Plaintiff Farid S. Urquizu Flores
("Plaintiff") alleges that on October 28, 2023, he purchased a 2024 Honda CR-V,
vehicle identification number 2HKRS3H45RH304709, (the "Subject Vehicle").
Through such purchase, Plaintiff entered a warranty contract with Defendant
American Honda Motor Co. ("Honda"), including various warranties including,
inter alia, a 3-year/36,000-mile express bumper-to-bumper warranty, a
5-year/60,000-mile powertrain warranty, and various emissions warranties with
greater time and mileage limitations than the bumper-to-bumper and powertrain
warranties. Plaintiff further alleges that subsequent to the purchase and

during the express warranty period, the Subject Vehicle exhibited serious defects and nonconformities to warranty including, inter alia, electrical, steering, and suspension system defects. Although Plaintiff presented the Subject Vehicle to Defendant Sonic-Harbor City H, Inc., d/b/a Carson Honda (“Carson Honda”), one of Honda’s authorized repair facilities, for warranty repairs on multiple occasions, none of the repairs brought the Subject Vehicle in conformity with the express warranty. Plaintiff further alleges that Honda failed to promptly offer to repurchase or refund the Subject Vehicle.

On August 13, 2024, Plaintiff filed the operative Complaint asserting cause of action for: (1) Violation of the Song-Beverly Act – Breach of Express Warranty; (2) Violation of the Song-Beverly Act – Breach of Implied Warranty; (3) Violation of the Song-Beverly Act Section 1793.2; and (4) Negligent Repair.

On April 23, 2026, Honda filed the instant Motion for Summary Adjudication (the “MSA”).

On August 5, 2026, Plaintiff filed an Opposition.

On August 14, 2026, Honda filed its Reply.

II. ANALYSIS

A. Legal Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that

the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c(p)(2).) “Once the defendant ... has met that burden, the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467 (“Avivi”).)

A motion for summary judgment must be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c(c).) On the other hand, a motion for summary adjudication must be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Id., § 437(f)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c(c).)

B.

The

Undisputed Material Facts (“UMF”)

Plaintiff purchased a 2024 Honda CR-V (VIN: 2HKRS3H45RH304709) on October 28, 2023. (UMF #1)[1]

On November 4, 2023, the Subject

Vehicle was presented to Honda's authorized repair facility, Riverside Honda, for complaints that the dash cluster intermittently turns on and off; the dealership confirmed the dash cluster is operating as designed and the repair was closed on November 4, 2023 indicating 1 day down. (Id., # 2.)[2]

On November 19, 2023, Plaintiff presented the Subject Vehicle to Riverside Honda for complaints that the gauge cluster intermittently turns off and on with half the lights showing; the dealership replaced the combination meter cluster and the repair was closed on December 4, 2023 indicating 15 days down. (Id., # 3.)

On January 6, 2024, Plaintiff presented the Subject Vehicle to Long Beach Honda for routine maintenance and a complaint of a clunking noise when turning the steering wheel; the dealership torqued all suspension nuts and bolts to factory spec and the repair was closed on January 6, 2024 indicating 1 day down. (Id., # 4.)

On February 17, 2024, Plaintiff presented the Subject Vehicle to Carson Honda complaining of a cracking noise when turning the steering wheel; the dealership verified the noise and added felt tape to the cable reel and confirmed the noise was no longer present. (Id., # 5.) The dealership closed the repair order on February 17, 2024 indicating 1 day down. (Id.)

On March 19, 2024, Plaintiff presented the Subject Vehicle to Carson Honda complaining of cracking noise when turning the steering wheel to the left or right. (Id., # 6.) The repair order was closed on March 19, 2024, indicating one day down. (Id.)

On April 13, 2024, Plaintiff presented the Subject Vehicle to Carson Honda for the replacement of the cable reel causing the cracking noise from the steering wheel; the dealership replaced the cable reel and confirmed that the noise was no longer present when turning the wheel (Id., # 7.) The repair order was closed on April 13, 2024 indicating 1 day down. (Id.)

On July 4, 2024, Plaintiff presented the Subject Vehicle to Carson Honda with a complaint that the sensors were intermittently not working; the dealership was unable to duplicate the complaint and this repair was closed on July 4, 2024 indicating 1 day down. (Id.,

8.)

On August 10, 2024, Plaintiff presented the Subject Vehicle to Carson Honda for routine maintenance; the dealership performed a multipoint inspection and changed the vehicle's oil and this repair was closed on August 10, 2024 indicating 1 day down. (Id., # 9.)

On April 22, 2025, Plaintiff presented the Subject Vehicle to Penske Honda of Ontario for routine maintenance and Safety Recall 24-117; the dealership performed a multipoint inspection, an oil change, and completed the Safety Recall and closed the repair on April 22, 2025 indicating 1 day down. (Id., # 10.)

On May 12, 2025, Plaintiff presented the Subject Vehicle to Penske Honda of Ontario with complaints of Bluetooth cutting out, the vehicle losing power and not accelerating, and the steering column feeling stiff when turning in both directions; the dealership performed a factory data reset on the Subject Vehicle, tested Bluetooth and radio operation, and found both to be working normally. (Id., # 11.) The dealership test drove the Subject Vehicle for 10 miles and confirmed it had normal power, no misfires, and the power steering felt normal during the test drive; the repair was closed on May 12, 2025 indicating 1 day down. (Id.)

On August 14, 2025, Plaintiff presented the Subject Vehicle to Penske Honda of Ontario with a complaint that a lane mitigation warning line kept appearing on the dash; the dealership replaced the multipurpose camera and the repair order was closed on August 21, 2025 indicating eight days down. (Id., # 12.)

No repair presentation took more than 30 days to complete. (Id., # 13.) The longest time the Subject Vehicle was out of service for repairs was fifteen days. (Id., # 14.)[3]

C.

Discussion

Honda moves for summary adjudication of Plaintiff's Third Cause of Action for Violation of the Song-Beverly Action Section 1793.2(b), arguing that there is no evidence that any repair

presentation was not commenced within a reasonable time or lasted more than thirty days. Plaintiff opposes, arguing that the language of Civil Code § 1793.2 is better understood to mean that the Subject Vehicle remains unrepaired for a period of longer than thirty days, rather than whether any specific repair visit lasted longer than 30 days.

Civil Code § 1793.2(b) states, in pertinent part:

Where .

. . service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay.

(Civ.
Code §1793.2(b).)

Honda

contends that Section 1793.2(b)'s [4] 30-day requirement should be read as 30 consecutive days during which it has to service or repair a vehicle and argues that, since the undisputed facts show that there was no repair lasting more than 30 consecutive days, no triable issue of material fact exists regarding Plaintiff's Third Cause of Action. In opposition, Plaintiff contends that Section 1793.2(b)'s requirement is cumulative rather than consecutive.

Courts

have not conclusively addressed the question of whether Section 1793.2(b) creates liability for a failure to repair the vehicle within 30 consecutive days or within 30 cumulative days. Given that the plain text of Section 1793.2(b) is unclear in that it could be read to mean either 30 consecutive days or 30 cumulative days, the Court turns to the legislative history of Section 1793.2.[5]

Under well-established rules of statutory construction, we must ascertain the intent of the drafters so as to effectuate the purpose of the law. Because the statutory language is generally the most reliable indicator of legislative intent, we first examine the words themselves, giving them their usual and ordinary meaning and construing them in context. Every statute should be construed with reference to the whole system of law of which it is a part, so that all may be harmonized and have effect . . .

When the plain meaning of the statutory text is insufficient to resolve the question of its interpretation, the courts may turn to rules or maxims of construction which serve as aids in the sense that they express familiar insights about conventional language usage. Courts also look to the legislative history of the enactment. Both the legislative history of the statute and the wider historical circumstances of its enactment may be considered in ascertaining the legislative intent. Finally, the court may consider the impact of an interpretation on public policy, for where uncertainty exists consideration should be given to the consequences that will flow from a particular interpretation."

(Mejia v. Reed (2003) 31 Cal.

4th 657, 663 (internal citations and quotations omitted, cleaned up).)

Prior

to 1992, former Section 1793.2(e)(1) read "It shall be presumed that a reasonable number of attempts have been made to conform a new motor vehicle to the applicable express warranties if, within one year from delivery to the buyer or 12,000 miles on the odometer of the vehicle, whichever occurs first, either (A) the same nonconformity has been subject to repair four or more times by the manufacturer or its agents and the buyer has at least once directly notified the manufacturer of the need for the repair of the nonconformity or (B) the vehicle is out of service by reason of repair of nonconformities by the manufacturer or its agents for a cumulative total of more than 30 calendar days since delivery of the vehicle to the buyer. The 30-day limit shall be extended only if repairs cannot be performed due to conditions beyond the control of the manufacturer or its agents." (Civ. Code § 1792.3(e)(1)(1991)(emphasis added).) The language as to "cumulative total of more than 30 calendar days," along with other language, was deleted from Section 1793.2(b) via Senate Bill 1762 in 1992. (See Stats.1992, c. 1232 (S.B. 1762, § 6.) The same Senate Bill,

S.B. 1762, added Civil Code § 1793.22 (a component of the Song-Beverly Act called the “Tanner Consumer Protection Act”) which governed new motor vehicles. (Id.) Importantly, in deleting the language regarding a “cumulative total of more than 30 calendar days” from Section 1793.2 and creating Section 1793.22 regarding new motor vehicles, the legislature added language to Section 1793.22 mirroring what was deleted from Section 1793.2. (See Civ. Code § 1793.22(b)(3)(“It shall be presumed that a reasonable number of attempts have been made to conform a new motor vehicle to the applicable express warranties if . . . [t]he vehicle is out of service by reason of repair or nonconformities by the manufacturer or its agents for a cumulative total of more than 30 calendar days since the delivery of the vehicle to the buyer”)(emphasis added).) By the Legislature deleting the “cumulative” language from Section 1793.2 and simultaneously adding the “cumulative” language to Section 1793.22, the Court understands that: (1) had the Legislature intended Section 1793.2(b)’s 30-day provision to be cumulative, the Legislature knew how to make it so; and (2) the Legislature intended Section 1793.22, created specifically to deal with new motor vehicles, to be cumulative and further intended Section 1793.2 to not be cumulative. Accordingly, the Court finds Honda’s interpretation of Section 1793.2(b)’s 30-day provision to be consecutive comports with legislative intent and to be more persuasive.

The Court therefore agrees with Honda that, for liability to attach under Section 1793.2(b) for excessive time to repair the vehicle, the vehicle must be in for repairs for longer than thirty consecutive days. Plaintiff’s position that “30 days” should be read as 30 cumulative days does not comport with legislative intent.

Here, Honda submitted undisputed evidence that each time Plaintiff presented his vehicle for repair, the repair facility repaired the vehicle in less than 30 days. The undisputed material facts demonstrate that when Plaintiff presented his concerns to the authorized repair facilities, the facility closed the repairs within one day, or at most within 15 days. (UMF ## 2-12.) Honda has therefore met its burden to demonstrate that there is no triable issue of material facts as to Plaintiff’s Third Cause of Action for violation of Civil Code Section 1793.2(b), and the burden shifts to Plaintiff to raise a triable issue of material fact.

Plaintiff

has not presented evidence sufficient to establish a question as to whether any of the repairs lasted longer than 30 days and therefore has not met his burden to demonstrate that triable issues exist as to the total time the vehicle was out of service by reason of repair of nonconformities. Accordingly, a ruling granting Honda's MSA is warranted.

Honda

also argues the evidence shows that Honda's authorized repair facilities commenced all repairs promptly. (Mot., p. 5:8-10.) In support of that contention, Honda presents evidence showing that, with the exception of the November 19, 2023 visit (see UMF # 3, indicating 15 days down) and the August 14, 2025 visit (see UMF # 12, indicating 8 days down), service was commenced on the same date the Subject Vehicle was brought in for repairs. (See UMF ### 2, 4-11.) Plaintiff fails to present evidence that Honda's authorized facilities did not promptly commence any of the repairs and presents no argument that repairs were not commenced promptly as to either the 15 day service period in 2023 or the 8 day service period in 2025. Accordingly, a ruling granting Honda's MSA is warranted on the basis of commencing repairs within a reasonable time.

Based

on the foregoing, Honda's Motion for Summary Adjudication is GRANTED.

III.

CONCLUSION

Honda's Motion for Summary Adjudication is GRANTED.

[1] The seller or dealership appears to be a disputed fact. Defendant states Plaintiff purchased the Subject Vehicle from Carson Honda, but Plaintiff disputes that the Sales Contract states Riverside Honda. The Court does not find this dispute material to its determination of Honda's MSA.

[2] Throughout, Plaintiff inserts into his Separate Statement what appear to be evidentiary objections, which objections are not made in compliance with the Rules of Court. Rule of Court 3.1354 requires that, when submitted in opposition to motion for summary judgment, "[a]ll written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate

statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement. Each written objection must be numbered consecutively and must: (1) [i]dentify the name of the document in which the specific material objected to is located; (2) [s]tate the exhibit, title, page, and line number of the material objected to; (3) [q]uote or set forth the objectionable statement or material; and (4) [s]tate the grounds for each objection to that statement or material.” (Cal. R. Ct., Rule 3.1354(b).) Additionally, “[a] party submitting written objections to evidence must submit with the objections a proposed order. The proposed order must include places for the court to indicate whether it has sustained or overruled each objection. It must also include a place for the signature of the judge.” (Id., Rule 3.1354(c).) A party failing to object in the manner required by Rule 3.1354 waives any objections. (See *Superior Dispatch, Inc. v. Insurance Corp. of New York* (2010) 181 Cal.App.4th 175, 192-193.) The Court accordingly deems Plaintiff’s evidentiary objections included within the Separate Statement waived.

[3] Plaintiff presents two unnumbered additional material facts, the first of which simply confirms that there is no triable issue of material fact as to identification of the Subject Vehicle or Plaintiff’s purchase of the Subject Vehicle. Plaintiff’s second additional material fact references “Plaintiff’s Complaint” as its supporting evidence. (See Plaintiff’s Separate Statement of Additional Material Facts, filed 8/5/26, p. 7:21-25.) A party opposing a motion for summary adjudication may not rely upon its pleadings but rather must set forth specific facts showing the existence of a triable issue of material fact. (Code Civ. Proc. § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.App.4th 826, 849.) Because Plaintiff’s additional material facts either add nothing for the Court’s consideration or are not supported by proper evidence, neither is included in the Court’s summary of undisputed material facts.

[4] Unless otherwise specified, Section references are to the Civil Code. Subdivision references are references to the subdivisions of Civil Code § 1793.2.

[5] The Court has determined that the rules and maxims of statutory construction do not provide substantial assistance in determining the “cumulative” versus “consecutive” question presented. The plain meaning of the statute is unclear and, even when read in context with the intention of giving

effect to the entirety of the Act, either interpretation suits.